MODIFICATION FOR SOLICITATION

Date: 10/23/2026	Solicitation # 2027000037 MOD 1

Title: Boiler Chemicals & Treatment Services – TCF

1. MODIFICATIONS

The Solicitation is modified as follows:

A. Solicitation Document, DQ 2027000037, Section 4, Service Location and Mandatory Site Visit, Location address updated and corrected to: 21000 Hwy 350 East, Model, CO. 81059.

B. Exhibit A, section 4, item A, Location address updated and corrected to: 21000 Hwy 350 East, Model, CO. 81059.

STATE OF COLORADO

COLORADO DEPARTMENT OF CORRECTIONS (CDOC)

DOCUMENTED QUOTE (DQ)

Date: October 23, 2026

DQ CAAA 2027000037 MOD 2

Title: Boiler Chemicals & Treatment Services – TCF

Single Point of Contact for this DQ is:

Jennifer Garvin – Purchasing Agent IV (doc_purchasing@state.co.us)

Contact with any other CDOC personnel regarding this procurement, unless specifically authorized by the above-named Single Point of Contact, may result in disqualification. All communication regarding this DQ must be done through the Single Point of Contact identified above.

This DQ is being published on the Colorado Vendor Self Service page (Colorado VSS) and bidnetdirect.com//cdoc so that Bidders who have an interest may submit a Quote in accordance with the terms of this DQ. Any changes/modifications to the DQ will be Posted on the above sites as well.

All information contained within this DQ, and any amendments and modifications thereto, reflect the best and most accurate information available to the CDOC at the time of this DQ.

1. **DQ PURPOSE:** Seeking bids from qualified vendors for Boiler Water Chemical Treatment, Laboratory Testing, and Technical Support Services performed at the Trinidad Correctional Facility - Boiler House.

2. **SCHEDULE OF ACTIVITIES:** This schedule of activities is for information and planning purposes only. Schedules for activities listed as "estimated" may be subject to change depending on the needs of the CDOC. All times are stated in Mountain Standard Time (MST), as adjusted for daylight savings.

ACTIVITY	DATE
DQ Published via Colorado VSS, https://www.colorado.gov/vss and bidnetdirect.com//cdoc	10/9/2026, 10/20/26 Mod 1, 10/23/26 Mod 2
MANDATORY SITE VISIT: Site visit will be held at Trinidad Correctional Facility. See Section 4 below for additional information.	**10/21/2026 @10:00am**
2nd OPTIONAL SITE VISIT: Site visit will be held at Trinidad Correctional Facility. See Section 4 below for additional information.	**10/27/2026 @10:00am**
Written Inquiries Deadline. Send Inquiries to: bidnetdirect.com//cdoc **NOTE:** No inquiries will be accepted after this date.	10/23/2026 by 2:00pm
Response to written inquiries; will be posted to Colorado VSS and bidnetdirect.com//cdoc **(Estimated)**	10/26/2026
Quote Submission Deadline Quote must be submitted in the method described in Section 9. **A Quote sent at 5:01 pm MST is considered late.**	**10/29/2026 @5:00pm**

Notice of Intent to Award Published on Colorado VSS and bidnetdirect.com//cdoc **(Estimated)**	11/2/2026
Purchase Order Execution **(Estimated)**	TBD

3. **ELIGIBILITY REQUIREMENTS**: ANY organization that can provide the services as outlined in this DQ.

   A. Accessibility Requirements. All work performed as a result of this DQ must comply with all applicable provisions of §24-85-101, of the Colorado Revised Statutes (C.R.S.), et seq., and the Accessibility Standards for Individuals with a Disability, as established by the Office Of Information Technology (OIT) pursuant to §24-85-103 (2.5), C.R.S. and all State of Colorado technology standards related to technology accessibility and with Level AA of the most current version of the Web Content Accessibility Guidelines (WCAG), incorporated in the State of Colorado technology standards.

      i. https://oit.colorado.gov/standards-policies-guides/technical-standards-policies

   B. Insurance Requirements. The awarded Bidder(s) will be required to submit a certificate(s) of insurance evidencing insurance coverage for the types and amounts of insurance as required by the Insurance provision in the Purchase Order Terms and Conditions, included in this DQ as Attachment I prior to execution of a Purchase Order.

4. **SERVICE LOCATION AND MANDATORY SITE VISIT:** Services will be performed at Trinidad Correctional Facility, located at 21000 Hwy 350 East, Model, CO. 81059. Bidders interested in submitting a quote for these services must attend the scheduled Mandatory Site Visit.

   Mandatory Site Visit - Time & Date: 10:00am, Wednesday, October 21, 2026. Attendees will be required to sign and return the Consent to Search form (Exhibit G), with a copy of their current photo identification card (ID) and pass a background check before being added to the facility access list. Bidders must attend one of the two scheduled site visits for Award consideration.

   Please email your request to attend the Site Visit to: kimberly.rusgrove@state.co.us no later than October 19, 2026, with a sign consent form (Exhibit G) and photo ID copy for all attendees. Admittance is at the sole discretion and consent of Trinidad Correctional Facility Security staff.

   2nd Optional Site Visit – Time & Date: 10:00am, Tuesday October 27, 2026. Bidders unable to attend the October 21st Site Visit have the option of attending a secondary site visit. Attendees will be required to sign and return the Consent to Search form (Exhibit G), with a copy of their current photo identification card (ID) and pass a background check before being added to the facility access list. Bidders must attend one of the two scheduled site visits for Award consideration.

   Please email your request to attend the Site Visit to: kimberly.rusgrove@state.co.us no later than October 23, 2026, with a sign consent form (Exhibit G) and photo ID copy for all attendees. Admittance is at the sole discretion and consent of Trinidad Correctional Facility Security staff.

5. **ANTICIPATED PURCHASE ORDER START DATE:** November 5, 2026, or after the contract or purchase order has been fully executed. Services cannot be scheduled until after a contract or purchase order has been issued.

6. **ANTICIPATED TERM OF PURCHASE ORDER:** The anticipated term of the resulting Purchase Order is for one (1) year, starting date to be determined. The resulting purchase order may be renewed for up to four (4) additional one (1) year periods, not to exceed a maximum term of five (5) years, at the sole discretion of the CDOC, contingent upon funds being appropriated, budgeted, and otherwise made available, and other contractual requirements being satisfied.

7. **RESPONSE PREPARATION:** The CDOC recommends reading all DQ materials prior to preparing a Quote, particularly these Quote instructions and the required **Exhibits.** Bidder(s) must follow these Quote instructions and provide a complete response to the items indicated on the table below. References and links to websites or external sources may not be used in lieu of providing the information requested in the DQ within the Quote.

A. Structure and List of DQ Documentation

DOCUMENT	DESCRIPTION	BIDDER RESPONSE INSTRUCTIONS
Exhibit A	Statement of Work, Bidder(s) Response	Bidder(s) must complete and submit by Quote deadline
Exhibit B	Required Bidder(s) Information	Bidder(s) must complete and submit by Quote deadline
Exhibit C	W-9 Request for Taxpayer ID	Bidder(s) must complete and submit by Quote deadline
Exhibit D	Price Quote	Bidder(s) must complete and submit by Quote deadline
Exhibit E	Contract Performance Outside the US or Colorado	Bidder(s) must complete and submit by Quote deadline
Exhibit F	Non-Conflict of Interest Bidder(s)	Bidder(s) must complete and submit by Quote deadline
Exhibit G	Consent to Search	Informational Only
Attachment 1	Purchase Order Terms and Conditions	Informational Only
Attachment 2	Insurance Information, explanation of what insurance is required if awarded.	Certificate of Insurance (COI) must be submitted by Quote deadline

B. Modifications and/or Supplemental Information to the DQ

i. Any modifications, amendments or supplemental information to the DQ will be published on Colorado VSS and bidnetdirect.com//cdoc. A modification notice will be published on Colorado VSS in the event that it becomes necessary to revise any part of this DQ.

ii. The CDOC may modify the DQ at any time. Modifications will be posted on Colorado VSS and bidnetdirect.com//cdoc. This is the only method by which the DQ may be modified.

iii. It is the Bidder(s) sole responsibility to check Colorado VSS and bidnetdirect.com//cdoc on a regular basis, prior to the Quote submission deadline, as this is the primary means for communicating any clarifications or changes to DQs content, timeline and/or requirements.

C. Cancellation. In accordance with §24-103-301, C.R.S., and the related Procurement Rules, the CDOC may cancel this DQ, or any and all Quotes may be rejected in whole or in part, without penalty, at any time before a Purchase Order is executed, when it is in the best interest of the CDOC. The reason and documentation supporting the decision to cancel the DQ or reject Quote(s) shall remain confidential for the lesser of six (6) months or until a Purchase Order is awarded by the CDOC. Reference Procurement Rules §24-101-401-05.

If the DQ is cancelled after Quotes are received, the Quotes that have been opened shall be retained in the procurement record, or if unopened, they will be disposed of or returned to the Bidder upon request at the Bidders' expense.

8. BIDDER INQUIRIES

A. Bidder(s) may only submit written inquiries concerning this DQ to obtain clarification on specifications and requirements through bidnetdirect.com//cdoc.

B. The CDOC, in its sole discretion, may not accept inquiries received after the date and time indicated in the schedule of activities.

C. The CDOC reserves the right to decline to answer any questions that do not pertain to the DQ, are deemed offensive, or to decline to answer any questions for any reason.

D. All inquiries should be clearly marked with the DQ number and title. Where appropriate, inquiries should include references to any relevant section/paragraph of the DQ.

E. Each inquiry should be listed separately.

F. The CDOC will publish responses to Bidder(s) inquiries collectively, in a timely manner, and as a modification on Colorado VSS and bidnetdirect.com//cdoc.

G. Bidder(s) shall not rely on any verbal statement that alter any specification or other term or condition of the DQ. Such changes are valid only if provided in writing by the Procurement Contact.

9. QUOTE SUBMISSION AND INFORMATION

A. Quote submission instructions

i. Bidder(s) are encouraged to review the DQ and any related Exhibits and Attachments in their entirety to ensure understanding and compliance with requirements that may be included in these documents.

ii. **Bidder(s) shall only submit Quotes, attachments, modification or withdrawals via bidnetdirect.com//cdoc**. The Quote submission should include the subject line: "Quote submission from (*Insert Bidder Name*) for DQ 2027000037 - Boiler Chemicals & Treatment Services – TCF. No other electronic submission methods or hard copy submittals will be accepted.

iii. Bidder(s) must be registered with Bidnet Direct in order to download DQ documents including any amendments or modifications) and to be considered responsive at the time of submission of the response. Bidder(s) who have not registered on the Bidnet Direct website must register promptly to ensure they are able to submit a timely DQ response.

   a. Information may be accessed through the Bidnet Direct website at: https://www.bidnetdirect.com/register. Bidnet Directs Help Desk can be reached at 1-800-835-4603 or by email at: support@bidnet.com. No submission will be accepted via VSS so please ensure that the Quote is submitted in accordance with these instructions.

iv. Please do not encrypt your documents/emails/questions.

v. The DQ submission typically uploads Quotes within five minutes. Bidder(s) are advised to submit Quotes no later than one hour prior to the Quote Submission Deadline to ensure the Quote has been received.

vi. Bidder(s) will receive an email confirmation that the file was uploaded correctly. If not, please contact the Bidnet Direct Help Desk.

vii. The Bidder(s) Quote and all attachments shall comply with the standards of section 508 of the Rehabilitation Act of 1973, (29 USC §794). The Bidder(s) may not have an opportunity to re-draft their Quote and attachments to make them accessible to people with vision impairments after the Quote submission deadline. The CDOC may disqualify a Bidders Quote from evaluation.

viii. Acceptance of DQ Terms: A Quote submitted in response to this DQ shall constitute a binding offer and acknowledgment that all terms and conditions of this DQ are accepted. Bidder(s) must identify any variations between their Quote and the DQ. Failure to do so shall be deemed a waiver of any rights to subsequently modify the terms of performance.

ix. Modifications of Quotes: Quotes may be modified or withdrawn by the Bidder(s) prior to the established due date and time. Withdrawal of the Bidder(s) Quote following the Quote submission deadline and prior to award, may be allowed, at CDOC's discretion. Withdrawal of a Bidder(s) Quote after award is not allowed. Reference Procurement Rules §24-103-201-08 and §24-103-201-09.

x. Bidder(s) may be asked by the CDOC to modify or clarify their Quotes after the due date.

xi. Quote Prices: Estimated Quote prices are not acceptable. Best and final offers may be considered in determining the apparent successful Bidder(s).

xii. Quote Rejection: The CDOC may reject a Quote, waive informalities, and minor irregularities, or accept any portion. Reference Procurement Rule §24-103-201-08.

xiii. Quantity: The CDOC may request future increases or decreases in the quantity of the goods or services, or request that goods or services be delivered to other areas within the CDOC.

xiv. Mistakes and Minor Informalities in Bidder(s) Quotes: In certain circumstances, a Bidder(s) may correct a mistake(s) in their Quote and/or the CDOC may waive minor informalities. Reference Procurement Rules §24-103-201-08.

xv. Bidder(s) Quote Content: The contents of the Quote of the awarded Bidder(s) and any modifications to the Quote negotiated by the CDOC included in the resulting Purchase Order will become contractual obligations. Failure of the awarded Bidder(s) to accept these obligations may result in cancellation of the award of that Bidder(s).

xvi. Incurred Costs: The CDOC is not liable for any cost incurred by Bidder(s) prior to any formal Purchase Order. No property interest of any nature shall occur until a Purchase Order is executed.

xvii. DQ Quote Material Ownership: All material submitted in the Quote to this DQ becomes the property of the CDOC.

xviii. Purchase Order: Bidder(s) must agree to the State's Purchase Order terms as outlined in the Purchase Order Terms and Conditions. Please note that any referenced or attached model Purchase Order lists the State's standard required legal provisions but may not include the specific scope of work and other specific terms or requirements for this DQ. Bidder(s) must review any attached Purchase Order terms and note any exceptions. Modifications to the State's Agreement terms constitute increased risk and costs to the State. Therefore, Bidder(s) noted exceptions may be considered in any evaluation. If no exceptions are noted, the Bidder(s) indicates an intent to accept the terms as-is.

xix. Confidentiality: Anything submitted by a Bidder(s) is likely to become public information. Bidder(s) may submit, as a part of their DQ response, a written request for classification of certain portions of the response as confidential information. This information will help ensure that all submitted materials are handled appropriately and in accordance with state confidentiality standards. The Procurement Official or his or her designee shall determine if the information identified in the Bidder(s) request is exempt from disclosure in accordance with §24-72-204, C.R.S., and shall inform the Bidder(s) in writing of the final determination.

a. When submitting a confidentiality request, materials for which confidentiality has been requested shall be readily identifiable and separable from other portions of the DQ to facilitate public inspection of the non-confidential portion of the DQ response. Please include a complete redacted Quote response along with an unredacted version of the Quote with associated confidentiality justifications. Commingling of confidential and non-confidential information is not acceptable.

b. Please provide a crosswalk of information related to the material you wish to be confidential and the reasons why the information should be considered as confidential. Bidder(s) must include the rationale for any request to classify portions as a trade secret or confidential or proprietary, including references to the authority that allows for such treatment.

c. In no event shall price information or an entire DQ response, nor any information that will be included in a resulting Purchase Order, be classified as confidential.

10. TIMELINESS OF QUOTE SUBMISSIONS

A. Quotes received after the submission deadline will not be accepted through Bidnet.

B. Responsibility for ensuring that a Bidder(s) Quote is received on time rests with the Bidder(s). Reasonably foreseeable problems inherent in the delivery of Quote are not extraordinary circumstances permitting acceptance of late Quotes. Anything received after Quote submission deadline is considered late.

C. Public Opening of Quotes – Virtual * NO VIRTUAL BID OPENING WILL BE DONE FOR THIS SOLICITATION

The public Quote opening will be held virtually. See the Schedule of Activities in Section 2 above for additional information. The CDOC will prepare a register of Quotes, which shall include the name of the Quote submitted by each Bidder(s).

11. ADDITIONAL RESOURCES

A. Bidder(s) Assistance

i. Any Bidder(s) needing support responding to solicitations may contact the Colorado Supplier Diversity Navigator at the Statewide Equity Office of Supplier Diversity. https://dhr.colorado.gov/statewide-equity-office/supplier-diversity. Services provided include assistance with responding to solicitations, interpretation of solicitation documents, technical assistance referrals, availability of resources, construction assistance, and free business directory listings and verifications through the Colorado Supplier Diversity Directory**.** The office can be reached during normal business hours by calling 1-303-866-5765 or emailing DPA_SupplierDiversityHelp@state.co.us.

B. Bidnet Direct: https://www.bidnetdirect.com/.

C. Vendor Self-Service (VSS) Site: https://prd.co.cgiadvantage.com/PRDVSS1X1/Advantage4.

12. QUOTE FORMAT AND CONTENT

Quotes must clearly demonstrate the organization's ability to perform the services described in the DQ.

A. The CDOC will not consider the submission of brochures, references to websites or other marketing material as a substitute for written response to our requirements and questions.

B. Quotes must follow the format outlined with electronic copies of each document provided as instructed. Quote sections should be tabbed, clearly identifiable, and contain the following. Please verify all information listed below is filled out, signed, and is attached with your Quote.

i. Exhibit A, Statement of Work, Bidder(s) Response

ii. Exhibit B, Required Bidder(s) Information

iii. Exhibit C, W-9 Request for Taxpayer ID Number

iv. Exhibit D, Price Quote

v. Exhibit E, **Contract Performance Outside the US or Colorado**

vi. Exhibit F, Non-conflict of Interest – Bidder(s)

vii. Exhibit G, Consent to Search

viii. Attachment 2, Certificate of Insurance

C. Pricing

i. Proposed pricing must remain firm during the initial term of the Purchase Order.

ii. Pricing must include any fees associated with the delivery of goods or services, including, but not limited to, shipping and installation.

iii. The CDOC may at its sole discretion elect to include a provision in the CDOC Purchase Order that allows the CDOC to consider an annual price increase not to exceed 2.5% for each fiscal year of the Purchase Order if awarded. Any price increases must be agreed upon between CDOC and the awarded vendor.

13. AWARD

A. Basis for Award (See Procurement Rule R-24-103-204-01)

A notice of intent to award will be announced on Colorado VSS and Bidnetdirect.com. The CDOC reserves the right to award to multiple bidder(s) if applicable, and if it is determined to be in the best interest of the CDOC. No actual order quantities/services or dollar amounts are guaranteed. The awarded bidder(s) must act in good faith to execute an agreement on or before the anticipated Purchase Order start date. If this date is not met, through no fault of the CDOC, the CDOC, at its sole discretion, may cancel the notice of intent to award.

i. This DQ and the resulting Purchase Order will be awarded to the responsible Bidder(s) whose acceptable Quote is determined to be the most advantageous to the CDOC, with price/cost being the primary consideration. Other considerations may include, but are not limited to, sample quality, and lead time for delivery.

ii. "Acceptable" means that the goods or services submitted in the Bidder(s) Quote will meet the CDOC's needs, and that the price is fair and reasonable. The determination of whether a Bidder(s) Quote is acceptable is solely within the CDOC's discretion.

iii. All awarded Bidder(s) are hereby notified that they must return Exhibits, A, B, C, D, E, F, and G (incorporated into this DQ as an Exhibit) with Quote. Failure to provide the required documentation may result in Quote being disqualified.

B. Negotiations

The CDOC may negotiate with any Bidder(s) to clarify the Bidder(s) Quote or to effect modifications that will make the Quote Acceptable or more advantageous to the CDOC; however, any requirements identified in this DQ may not be negotiated. Reference Procurement Rule R-24-103-204-01(d).

C. Single Quote

If only one Quote is received in response to this DQ, an award may be made to the single Bidder(s) if the procurement official finds that the price submitted is fair and reasonable and that other prospective Bidder(s) had reasonable opportunity to respond to the DQ. If the price submitted is not fair and reasonable and there is not adequate time for re-solicitation, the procurement official may enter into competitive negotiations in accordance with Procurement Rule R-24-103-208-02.

D. Protests. Any actual or prospective Bidder(s) who are aggrieved in connection with the DQ or award of a Purchase Order may protest to the Single Point of Contact listed in the Schedule of Activities section and Tina Fay (email to tina.m.fay@state.co.us), CDOC Associate Director of Procurement. The protest shall be submitted in writing within three business days after such an aggrieved person knows, or should have known, of the facts giving rise thereto.

E. Notice of Award

The CDOC will notify all bidders who submitted a Quote when it issues a notice of intent to award via Bidnet and ColoradoVSS sites. The CDOC reserves the right to award multiple bidders if applicable, and if it is determined to be in the best interest of the CDOC. The awarded bidder(s) must act in good faith to execute an agreement on or before the anticipated Purchase Order start date. If this date is not met, through no fault of the CDOC, the CDOC, at its sole discretion, may cancel the notice of intent to award

F. Documents After Award

Prior to Purchase Order execution, the awarded Bidder(s) must provide the CDOC with proof of Good Standing with the Colorado Secretary of State and an insurance certificate documenting coverage as required by the Purchase Order.

14. PROFESSIONAL ETHICS AND FAIR BUSINESS PRACTICES

A. Any person involved in the purchasing process for the State, any end user of such goods and services, any Bidder that does business with the State, and any other interested third parties to the procurement process shall enhance the proficiency and stature of the purchasing process by adhering to the highest standards of ethical behavior.

B. The State of Colorado believes that all employees and community partners, whatever their gender, race, ethnicity, religion, national origin, age, sexual orientation, gender identity, citizenship status, education, disability, socio-economic status, or any other identity, feel valued and respected. We are committed to nondiscriminatory practices and providing equitable opportunities for employment and advancement in all our CDOCs, programs, services, and worksites. We respect and value diverse life experiences and work to ensure that all voices are heard so that a person's future success is not determined by their identity.

C. Bidder(s) acknowledge that even the appearance of a conflict of interest may be harmful to the State's interests. Bidder(s) shall disclose in their Quotes whether there currently is, or potentially could be, the appearance of a conflict of interest regarding this DQ, its staff, any proposed subcontractors or partners, or any related business with the State. Reference §24-18-201, CRS, et seq. (Proscribed Acts Related to Contracts and Claims); §24-50-507, CRS (Conflict of Interest); §18-8-301, CRS, et seq. (Bribery and Corrupt Influence); §18-8-401, CRS, et seq. (Abuse of Public Office); §6-4-101, CRS, et seq., (Colorado Antitrust Act of 1992); §24-109-105, CRS (Debarment and Suspension); and Procurement Rule R-24-101-107-01 (Ethics).

D. Bidder(s) must disclose in their Quote any potential or actual conflict of interest in connection with a response to this DQ. A conflict of interest may include, but is not limited to, access to any non-public information by the Bidder(s) regarding the DQ or its subject matter. Quote submission and signature constitute the Bidder(s) acknowledgment and binding acceptance of all DQ requirements, terms, and conditions.

15. ADMINITRATIVE INFORMATION

A. Security Provisions:

i. Upon notification of award or full Purchase Order execution, the Contractor shall immediately initiate and expedite all these CDOC Enhanced Criminal Background Investigation (background check/fingerprint) requirements. Failure to complete this process within 30 days, or any Contractor-responsible delays that impede completion of this process allowing for performance or services delivery, may trigger (CDOC or CDOC contract rule procedure), including a formal demand to cure our Purchase Order termination. Contractor may be given additional consideration by CDOC for extenuating circumstance or delays on a case-by-case determination

ii. All Contractor personnel responsible for delivering goods and providing services to CDOC may be required to complete a criminal history check, background screening, fingerprinting, and drug testing conducted by CDOC. Additionally, CDOC reserves the right to verify your employment history, any disciplinary actions, educational credentials, and professional licenses.

iii. The Colorado Revised Statute (C.R.S.) §27-90-111 may apply in specific situations.

iv. All Contractor personnel who come onto CDOC property who perform services shall be required to sign a "Consent to Search Authorization" form before CDOC shall permit access to any correctional facility.

Only the individual who has provided consent for the search is permitted.
Pets are not permitted in vehicles on State property,
Alcohol and drugs are prohibited in vehicles on State property,
Firearms are not allowed in vehicles on State property.

v. In the event of a facility disturbance or event, CDOC may temporarily detain the entry and exit of all traffic from the facility. All reasonable efforts shall be made to release the Contractor's personnel and any equipment as quickly as possible while maintaining the security of the CDOC facility.

vi. Cell phones, cameras, tablets, and laptops will be restricted on all CDOC properties. Accommodation may be made if prior approval is requested at least 4 days in advance, subject to the discretion of the individual facility. East Canon Correctional Prison Complex does not allow cell phones, cameras, tablets, and laptops past checkpoint without prior authorization.

vii. No tobacco or vapes, weapons, or other contraband items will be allowed.

viii. CORE Registration. Unless otherwise noted, before the CDOC can execute a Purchase Order for any Bidder(s), that Bidder(s) must be registered in CORE, which can be completed through Vendor Self Service at www.colorado.gov/vss.

ix. Electronic Funds Transfers (EFT). Awarded Bidder(s) are encouraged to sign up for EFT.

x. News Releases. Bidder(s) may not issue any news releases pertaining to this DQ without the CDOC's prior written approval.

xi. Taxes. The CDOC is exempt from all federal excise taxes under Chapter 32 of the Internal Revenue Code (Registration No. 84-730123K) and from all state and local government use taxes C.R.S. §39-26-114(a). The Colorado State and Local Sales Tax Exemption Number is 98-02565. When materials are purchased in certain political subdivisions (for example - City of Denver), the Bidder(s) may be required to pay sales tax even though the ultimate product or service is provided to the State of Colorado. This sales tax will not be reimbursed by the State.

16. DEFINITIONS, TERMS, AND ACRONYMS

A. **AR** means administrative regulation.

B. **Awarded Contractor/Vendor/Bidder(s)/Respondent** means the Bidder(s) whose proposal the CDOC determines to be most advantageous and is approved and accepted by CDOC which enables CDOC to undertake a Contract with the Contractor for the purchase of the services or goods or both.

C. **Bidder(s)** means any organization or individual submitting a proposal in response to a Request for Proposal (RFP) solicitation. More generally to mean any organization or individual submitting an offer, proposal in response to any type of procurement solicitation. Same as Bidder(s), Vendor, or Respondent.

D. **Business Day** means any day on which the State is open and conducting business, but shall not include Saturday or Sunday or any day on which the State observes the holidays listed in §24-11-101(1), C.R.S.

E. **CDOC** means Colorado Department of Corrections or State.

F. **Chief Procurement Officer** means the individual to whom the Executive Director has delegated his or her authority pursuant to §24-102-202, C.R.S. to procure or supervise the procurement of all supplies and services needed by the State.

G. **CJI** means criminal justice information collected by criminal justice agencies needed for the performance of their authorized functions, including, without limitation all information defined as criminal justice information by the U.S. Department of adjustment, Federal Bureau of Investigation, Criminal Justice Information Services Security Policy, as amended and all Criminal Justice Records as defined under C.R.S. 24-72-302.

H. **Contract** means any type of state Agreement, regardless of what it may be called (purchase order, Agreement, contract, etc.), between a governmental body and a contractor, where the principal purpose is to acquire supplies, services, or construction or to dispose of supplies for the direct benefit of a governmental body. “Contract” includes commitment vouchers as described in §24-30-202 C.R.S.

I. **Contract Funds** means the funds that have been appropriated, designated, encumbered, or otherwise made available for payment by the State under Contract.

J. **Contractor** means any organization or individual that seeks to provide or is already providing goods or services. Often synonymous with selected, successful, or awarded Bidder, Bidder, or Vendor.

K. **CORA** means Colorado Open Records Act, §24-72-200.1 et seq., C.R.S.

L. **C.R.S.** means Colorado Revised Statutes as amended.

M. **Data Sharing Agreement** means a formal contract that details what is being shared and the appropriate use for the data.

N. **HIPAA** means Health Information Portability and Accountability Act.

O. **Offender** means member of the CDOC inmate population (including YOS).

P. **OIT** means Office of Information Technology.

Q. **PHI** means any protected health information, including, without limitation any information whether oral or recorded in any form or medium: (i) that relates to the past, present, or future physical or mental condition of any individual; the provision of health care to an individual; or the past, present or future payment for the provision of health care to an individual; and (ii) that identifies the individual or with respect to which there is a reasonable basis to believe the information can be used to identify the individual. PHI includes but is not limited to any information defined as Individually Identifiable Health Information by the Federal Health Insurance Portability and Accountability Act.

R. **PII** means personally identifiable information including, without limitation, any information maintained by the State about an individual that can be used to distinguish or trace an individual, such as medical, educational, financial, and employment information. PII includes, but is not limited to, all information defined as personally identifiable information in C.R.S. §24-72-501 and §24-73-101.

S. **PREA** means Prison Rape Elimination Act.

T. **Quote** means an offer in response to a Documented Quote (DQ) solicitation.

U. **SDVOSB** means Service-Disabled Veteran-Owned Small Business Participation.

V. **Solicitation** means a document issued by a prospective buyer that requests competitive offers from organizations or individuals to sell the goods or services or both that are specified in the document. A solicitation typically results in an award of a Contract or Purchase Order for the goods or services based on an award methodology defined in the solicitation. Types of solicitations issues by the State of Colorado agencies include: Request for Proposals (RFP), Invitation for Bid (IFB), Documented Quote (DQ).

W. **State Confidential Information** means any State Records not subject to disclosure under CORA. State Confidential Information shall include, but is not limited to, PII, PHI, PCI, Tax Information, CJI, and State personnel records not subject to disclosure under CORA. State Confidential Information shall not include information or data concerning individuals that is not deemed confidential but nevertheless belongs to the State, which has been communicated, furnished, or disclosed by the State to Contractor which (i) is subject to disclosure pursuant to CORA; (ii) is already known to Contractor without restrictions at the time of its disclosure to Contractor; (iii) is or subsequently becomes publicly available without breach or any obligation owed by Contractor to the State; (iv) is disclosed to Contractor, without confidentiality obligations, by a third party who has the right to disclose such information; or (v) was independently developed without reliance on any State Confidential Information.

X. **State Fiscal Rules** means those fiscal rules promulgated by the Colorado State Controller pursuant to C.R.S. §24-30-202(13)(a).

Y. **State Fiscal Year** means a twelve (12) month period beginning on July 1 of each calendar year and ending on June 30 of the following calendar year. If a single calendar year follows the term, then it means the State Fiscal Year ending in that calendar year.

Z. **State Records** means any State data, information, and records, regardless of physical form, including, but not limited to, information subject to disclosure under CORA.

AA. **Subcontractor** means a Bidder(s) selected by the Contractor that enters into a contractual relationship with the primary Contractor to carry out the project as a result of the solicitation.

BB. **VSS** means the State of Colorado's Vendor Self-Service System website located at www.colorado.gov/vss. All solicitations published by State agencies and institutions are published on VSS, unless specific entities have been granted to opt out of the program. Bidder(s) have access to this website.

CC. **YOS** means Youthful Offender System within the Colorado Department of Corrections, Division of Adult Parole, Community Corrections, and Youthful Offender System.